

provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Despite not being required to do so, Defendants' counsel sent a letter to Plaintiff attempting to meet and confer on June 26, 2026.

Defendants have provided evidence that Plaintiff was served by mail on May 20, 2026 with Defendants' Form Interrogatories, Set Two and Requests for Admission, Set One. It is now more than thirty days since Plaintiff was served and Plaintiff has not responded to the propounded discovery. The Court finds that there is good cause justifying the discovery sought by Defendants. The Court notes that Form Interrogatories, Set Two only included Item 17.1, which seeks information about each Request for Admission. Deeming the Requests for Admission admitted renders a response to 17.1 moot.

Sanctions. CCP § 2030.290(c) only provides for sanctions when an unsuccessful opposition is made, however, the Court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery even when no opposition was filed. CRC 3.1348. Monetary sanctions are mandatory when a party fails to timely respond to Requests for Admission. CCP § 2033.280(c). Defendant seeks \$1,710 in monetary sanctions which is comprised of a \$60 motion fee, four hours of attorney time for the motion, and 1.5 hours of attorney time for Plaintiff failing to attend the Mandatory Settlement Conference on June 8, 2026. There is no legal basis for the Court to award the 1.5 hours requested for the Mandatory Settlement Conference. The Court will award four hours for the discovery motion and \$60 for the motion fee. Counsel requests the rate of \$300 per hour which the Court finds to be reasonable. Monetary sanctions are awarded to Defendants in the amount of \$1,260.

The motion is **GRANTED**. Plaintiff is deemed to have admitted as true each of the items contained in Defendants' Request for Admissions, Set One. Because the Requests for Admission have been deemed admitted, there is no need for a response to Form Interrogatories, Set Two. Monetary sanctions are awarded to Defendants in the amount of \$1,260. Plaintiff provided a proposed Order, however, the proposed Order does not contain the text of the Requests for Admission being deemed admitted. Defendant shall provide a proposed Order that includes the text of Requests for Admission, Set One.

BAMFORD, ET AL. VS. BURNEY WATER DISTRICT
CASE NUMBER: 24CV-0204809

Tentative Ruling on Order to Show Cause Re: Sanctions: On July 30, 2026, the Court issued an Order to Show Cause Re: Sanctions (OSC) to Guardian ad Litem Lavon Bamford for failure to appear at the July 29, 2026 hearing. The Court's intent was to issue an Order to Show Cause Re: Termination of Lavon Bamford as the Guardian ad Litem for Kira Bamford and Klearwater Bamford for failure to participate in the action. However, due to a clerical error, the Order to Show Cause Re: Sanctions issued. The Order to Show Cause Re: Sanctions is **DISCHARGED**.

The Court will issue an Order to Show Cause Re: Termination as Guardian ad Litem to Lavon Bamford. Hearing on the Order to Show Cause Re: Termination will be on **Monday, October 12, 2026 at 8:30 a.m. in Department 63**. The clerk is directed to issue the Order to Show Cause Re: Termination and serve counsel for Plaintiffs and Defendant as well as Lavon Bamford directly. Plaintiffs' counsel is reminded that should Lavon Bamford be terminated as the Guardian ad Litem, Plaintiffs' counsel will need to find a suitable replacement and submit applications for both Kira Bamford and Klearwater Bamford.

IN RE: CLAREY
CASE NUMBER: 26CV-0210037

Tentative Ruling on Petition for Change of Name: Petitioner seeks to change the last name of her minor daughter. The Certificate of Publication was filed on June 2, 2026. When a petition to change the name of a minor is brought by one parent only, the non-petitioning parent must be personally served with the Order to Show

Cause at least 30 days before the hearing date. See CCP § 1277(a)(4). Proof of Service was filed on July 20, 2026 indicating that “MC-030, NC-100, and NC-120” forms were personally served on the father on July 17, 2026. This is more than thirty days prior to today’s hearing, however, because an Amended Order to Show Cause never issued, it is unclear if any of the documents served provided notice of today’s hearing or only provided notice of the original hearing date of May 26, 2026. **An appearance by Petitioner is necessary on today’s calendar. The Court will inquire regarding the contents of the Order to Show Cause (NC-120) served on the father on July 17, 2026.**

IN RE: EASTER

CASE NUMBER: 26CV-0210772

Tentative Ruling on Petition for Change of Name: Petitioner Jessica Penny Easter seeks to change her name to Penny Georgia-Darlene Hetzel No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

IN RE: EMERY

CASE NUMBER: 26CV-0210809

Tentative Ruling on Petition for Change of Name: Petitioner Alex Emery seeks to change his name to Alexandre David Podtetenieff. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

HAM, ET AL. VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206529

Tentative Ruling on Motion for Summary Judgment or Adjudication: Defendant FCA US, LLC moves for summary judgment, or in the alternative, summary adjudication. The motion was originally noticed for September 29, 2025, however, the hearing continued by stipulation of the parties to January 26, 2026. Plaintiffs Taryn and Ryan Ham moved for a continuance of the January 26, 2026 hearing pursuant to CCP § 437c(h) alleging that they had been unable to depose Defendant’s PMQ. The Court granted the continuance. At a February 9, 2026 status conference, the parties informed the Court that the PMQ deposition was scheduled and June 15, 2026 was selected for the hearing date on the motion. Plaintiffs did not file an Amended Opposition. The Court’s tentative ruling on June 15, 2026 required an appearance because it was unclear if the motion was going forward. Plaintiffs did not appear. When the matter was back on calendar on July 26, 2026, both parties informed the Court that the motion was fully briefed and could move forward. Based on the Court’s calendar, the earliest date possible was August 17, 2026 which is why the Court found good cause to hear the motion less than thirty days prior to trial. A visiting judge who recused on the matter was present on August 17, 2026 and the hearing again moved to the earliest available date of August 24, 2026. The Court continues to find good cause to hear the motion within thirty days of trial. Because all issues regarding CCP § 437c(h) have already been addressed, they are not addressed in this tentative ruling.

Evidentiary Objections. The Court rules as follows on the evidentiary objections made by Defendant:

Declaration of Rabiya Tirmizi.

1. Sustained as improper legal opinion
2. Overruled
- 3-6. A ruling is only required on objections to evidence that are material to the disposition of the motion. This pertains to the request for a continuance under CCP § 437c(h), which is not an issue in this ruling.

Declaration of Taryn Ham and Ryan Ham

1. Overruled